

No.DNHPDA/102(75)/Hoardings/SW/2024/988

Dated: 16/07/2024

NOTICE

E-Auction for “**Leasing of Advertising Rights for 3 (Three) Years to Display Advertisement on Hoardings at Sky Walk, Tokarkhada** will be held from **Date:17/07/2024 to 31/07/2024** through online portal i.e. <https://pdadnhrent.com/> The interested bidders will have to register for online auction on portal for bidding **by paying fee of Rs.1100/- wherein Rs. 100/- (Non-refundable) shall be taken as Registration Fees and Rs. 1000/- (Refundable) as Earnest Money Deposit (EMD)**. The bidders can download terms and conditions from online portal and will have to agree upon all the terms and conditions for bidding. The location of Hoardings Spaces can be visited at Skywalk Way, Tokarkhada, Silvassa by the interested bidders during the office hours before the end of e-auction.

Sd/-
Member Secretary
DNHPDA, Silvassa

submitted to:-

- 1) The Chairman, DNHPDA, for kind information please.



E- AUCTION

For

**Leasing of Advertising Rights for 3 (Three)
Years to Display Advertisement on Hoardings at
Sky Walk, Tokarkhada, Silvassa.**

**Dadra & Nagar Haveli
Planning and Development Authority**

**TERMS AND CONDITIONS OF E-AUCTION FOR LEASING OF
ADVERTISING RIGHTS FOR 3 (THREE) YEARS TO DISPLAY
ADVERTISEMENT ON HOARDINGS AT SKY WALK,
TOKARKHADA, SILVASSA.**

1. Introduction:

Silvassa, the district headquarter of Dadra and Nagar Haveli, lies on the banks of the Daman Ganga river, approximately 30 kilometers from Daman. With an area of 17.22 square kilometers and a population of 98,265 as per the 2011 Census.

In the heart of the city, the Dadra and Nagar Haveli Planning & Development Authority (DNHPDA) has constructed a Skywalk facility to enhance mobility for students and citizens of the town. The primary objective of this e-auction is to lease the rights for displaying advertisements on hoardings along the Skywalk, strategically positioned at the prominent Tokharkahada junction, ensuring high footfall.

The aim of this initiative is to improve the city's aesthetics, provide advertising space, and eliminate unauthorized and haphazardly erected hoardings. The DNHPDA intends to invite eligible bidders to participate in the auction, adhering to the specified qualification criteria for a Three-year lease period. Detailed information on the approximate sizes of advertisement panels can be found in Annexure 1 of the document.

2. Procedures for “Leasing of Advertising Rights for 3 (Three) Years to Display Advertisement on Hoardings at Sky Walk, Tokarkhada to the Bidders:

- a) To participate in this online auction, the bidder shall have to register himself on the portal by giving all the required details and paying registration fee (if any) after agreeing upon various terms and conditions.
- b) Person intending to participate in auction shall have to pay fee of **Rs.1100/- wherein Rs. 100/- (Non-refundable) shall be taken as Registration Fees and Rs. 1000/- (Refundable) as Earnest Money Deposit (EMD) for Leasing of Advertising Rights for 3 (Three) Years to Display Advertisement on Hoardings at Sky Walk, Tokarkhada, Silvassa** to be submitted through online on the portal <https://pdadnhrent.com/>

- c) The EMD, identity proof, address proof, bank details, disability certificate (if applicable) and all tender related documents shall be submitted in physical in PDA office in single sealed envelope. The envelope shall only subscribe/title **“Leasing of Advertising Rights for 3 (Three) Years to Display Advertisement on Hoardings at Sky Walk, Tokarkhada”** and **“Registration ID”** generated during the time of registration on online portal. The bidder shall not disclose the bid amount in any document except on online portal. If bid amount is disclosed in any physical documents of tender the bidder will be disqualified.
- d) The officers superintending the auction of **“Leasing of Advertising Rights for 3 (Three) Years to Display Advertisement on Hoardings at Sky Walk, Tokarkhada”** shall conduct the auction in the following manner:
- a) The auction shall be conducted by taking bids online, in between the auction start time and end time, the time will duly be advertised in auction portal.
 - b) The auction will start from the minimum limit of **1 (one) year rent** set for each **Leasing of Advertising on Hoardings at Sky Walk, Tokarkhada** by the committee.
 - c) The bid shall be submitted by the bidder from the minimum limit set in auction portal. **(Minimum limit is set only for 1 (one) year rent.)**
 - d) The bidder shall submit his account details like account number, IFSC code etc. at the time of registration on portal.
 - e) The bids will be valid only when the EMD and auction Fees are submitted.
 - f) The Leasing property will be handed over to the highest bidder. In case of the highest bidder is disqualify for any reason the Leasing property will be licensed to next highest bidder.
 - g) If the bids by bidders for a Leasing property is same, then both the bidders will be called together and a draw will be conducted through chits, each chit will have the bidders name along with Shop No. in it, thereafter whichever chit is opened with any of either name, the Leasing property will be given to him/her.

- h) If the documents required for bidding are not submitted the bid will be rejected and shall go to next highest bidder.

The Member Secretary, Planning and Development Authority or the Administrative Officer, Planning and Development Authority shall have right to accept or reject any bid/offer or may stop any bidder at any stage of auction from bidding without assigning any reason thereof. No appeal against above action by the Department shall be entertained.

3. Scope of Work:

- a) The Dadra and Nagar Haveli Planning and Development authority has identified total 42 places for installation of hoardings at Skywalk facility at Tokarkhada. This includes a total of 12 big hoardings of size (6mt x 3mt) and remaining places for installation of 30 small hoardings of size (2mt x 0.5mt) the list of locations and details of hoardings is placed in form of Annexure -1.
- b) The Scope of Work for this E-auction is to install the advertisement hoarding on the places identified by the department for the lease of 3 (Three) years. The hoarding base frame for the advertisement is also under the scope of work of the successful bidder.
- c) The successful bidder can also suggest any additional place where any advertisement may be installed. Additional places should be approved by Member Secretary DNHPDA. Rates of such area shall be equal to maximum rate per hoarding quoted by the bidder. DNHPDA reserves the sole right not to give additional location for advertisement. The bidder voluntarily agrees not to seek any claim, compensation, or any other consideration whatsoever on this account.
- d) The bidder will have to maintain all the displays/ advertisement in proper and neat and clean condition for the full term of the contract. It is being clarified that, the theme of all the advertisement hoarding shall be compulsorily on the Varli art & architecture (i.e. borders, frame etc.).
- e) The successful bidder shall also be responsible for adequate maintenance of the advertisement as mentioned in Annexure 1. All the base frame installed and commissioned will be the sole property of DNHPDA after the termination of the contract naturally or prematurely. The bidder voluntarily agrees not to seek any claim, damages, compensation or any other consideration whatsoever on this account.

- f) Successful bidder shall also be required to remove unauthorized hoardings of any other person from Skywalk area. He/ She shall require no additional permission for the same. Being selected in this E-auction shall make him an agent of DNHPDA to remove unauthorized hoardings from the Skywalk.
- g) If it is found that the bidder had displayed advertisement without permission rather than the 27 mandatory hoardings, he shall be liable to be charged for such advertisements at ten times of the rate tendered and may also lead to cancellation of contract, and all amounts lying with DNHPDA such as Security Deposit shall be forfeited.
- h) Use of the boundary wall and railings/grills over it, for advertisements is strictly prohibited. Use of the boundary wall and railings/grills for advertising purposes will lead to cancellation of the bidder agreement.
- i) The bidder has to mention the term of advertisement below the hoarding on each advertisement and also mention the name of the bidder installing the advertisement.
- j) The successful bidder shall be responsible for payment of all electricity charges and any other charges as levied from time to time by the U.T. Administration during the license period.
- k) The successful bidder shall be responsible for upkeep, maintenance, inclusion or reduction and operation of lighting system during the license/ contract period.
- l) The successful bidder will ensure the Structure Stability for the hoardings & its structures. Fixing arrangements should be such that these should not damage the property and should not fall on the road or ground. The bidder shall be solely responsible for any loss or damage caused due to any such mis-hapenning/ accident and he shall be solely liable to pay all fine/penalty/ compensation as decided by the Competent Authority.
- m) The bidder is advised to take 3rd party insurance. In the event of not taking insurance cover, the bidder agrees and undertakes to indemnify and keep indemnified DNHPDA harmless against any and all liabilities, Losses, damages, claims, expenses suffered by the DNHPDA as a result

of not taking such insurance cover by the licensee. The Licensee shall also strictly abide by any safety guidelines as may be issued by DNHPDA from time to time. The bidder has to provide the Structural Stability Certificate of any approved Structural Engineer individually for each hoarding.

- n) The Licensee is prohibited from displaying any advertisement containing the following nature of contents or as amended by statutory bodies or Guidelines from UT Administration.

The Authority reserves the right to refuse the display of any advertisements.

1. Nudity and censored displays.
2. Racial advertisements or advertisements propagating caste, community or ethnic differences.
3. Advertisement promoting drugs, alcohol, cigarette or tobacco items Advertisements propagating exploitation of women or child.
4. Advertisement having sexual overtone.
5. Advertisement depicting cruelty to animals.
6. Advertisement depicting any nation or institution in poor light.
7. Advertisement casting aspersion of any brand or person.
8. Advertisement banned by the Advertisement Council of India or by law.
9. Advertisement glorifying violence.
10. Destructive devices and explosives depicting items.
11. Lottery tickets, sweepstakes entries and slot machines related advertisements
12. Any psychedelic, laser or moving displays.
13. Advertisement of Weapons and related items (such as firearms, firearm parts and magazines, ammunition etc.)
14. Advertisements which may be defamatory, trade libelous, unlawfully threatening or unlawfully harassing.
15. Advertisements which may be obscene or contain pornography or contain an "indecent representation of women" within the meaning of the Indecent Representation of Women (Prohibition) Act, 1986.

16. Advertisement linked directly or indirectly to or include description of items, goods or services that are prohibited under any applicable law for the time being in force, including but not limited to the Drugs and Cosmetics Act, 1940, the Drugs And Magic Remedies (Objectionable Advertisements) Act, 1954, the Indian Penal Code, 1860;

17. Any other items considered inappropriate by the UT Administration.

4. THE ELIGIBILITY CRITERIA FOR THE LESSEE:-

For Leasing of Advertising Rights for 3 (Three) Years to Display Advertisement on Hoardings at Sky Walk, Tokarkhada, and Silvassa are as under:-

The lease should be Indian national and ordinary citizen of DNH, have following any of the below mentioned documents:-

- 1. Aadhar Card/Election Card/Pan Card/Diving License. (any one)**
- 2. Certificate from auditor / CA specifying the annual turnover of minimum Rs. 10.00 Lakhs in last 03 financial years.**
- 3. The bidder shall submit the documents of last 03 years Income Tax Return.**

5. The EMD of any unsuccessful bidder will be returned at the close of the auction on production of a stamped receipt and EMD of the successful bidder shall be adjusted at the time of final payment made by the bidder. No bidder shall be permitted to retract the bid. In the event of dispute between the bidders, the dispute shall be decided by the Member Secretary, DNHPDA. His decision in this respect shall be final and binding on all persons offering bids at the auction. The bids offered in any other manner except hereto before mentioned shall not be considered. In case of failure of the bidder to pay either rent or in case of retraction, EMD shall be summarily forfeited and the leased property may be allotted to next highest bidder or may be put in another auction at the discretion of the authority.
6. Participants must submit self-declaration of type of business and upload on the portal while taking part in auction and in case of change of his/her business he/she shall take written permission of Planning and Development Authority before doing business.
7. Participant of auction may offer his **highest Yearly rent from minimum limit set on point No.09** Leasing of Advertising Rights for 3(Three) Years to

Display Advertisement on Hoardings at Sky Walk, Tokarkhada, Silvassa
he/she is willing to keep on rent.

8. This leasing property will be allotted initially for the period of **3 (Three) years** on yearly rental basis. However after Three years period the same property will be allotted as decided by the DNHPDA. The cost of registration of the lease of property shall be borne by the bidder
9. **The minimum 1(One) Year rent including with service charge/tax/(GST) for leasing property is mentioned below:**

Auction No – 3					
Details of leasing property Display and Advertisement on Hoardings Area at Skywalk Way, Tokarkhada, Silvassa					
Sr. No	Description and location	Area in Sq. Mt.	Amount in (Rs.) for 1 Year	No. of Hoardings	Total Qty. (Sq.mt.)
1	2	3	4	5	6
1	Hoarding Size (6mt x 3mt) Near Bagicha Hotel – Minibus stand Silvassa - Samarvarni main road	18	7,31,268	6	108
	Hoarding Size (6mt x 3mt) Near Govt School, Tokarkhada – Mundra Cement Godown Samarvarni – Silvassa main road	18		6	108
	Hoarding Size (2mt x 0.5mt) On top semicircle purlins of walk way area at Sky walk	01		15 x 2sides = 30	30
	Total		7,31,268	42	246.00
	Total amount for 1(one) Year for Display and Advertisement on Hoardings is Rs. 7,31,268/-				

Bids increased through paisa will not be counted (E.g. The (A) Bidder bids Rs.6500 and the other (B) Bidders bids Rs.6500.25 then the amount of both Bidders will be counted same i.e. Rs.6500/-)

The service charge/tax/ (GST) is included in point No.09 that shall have to be paid by the tenants. Such service charges shall be collected by the DNHPDA from the tenant's including with the rent and in turn shall pay to the concern authority.

10. Total 42 places for installation of hoardings at Skywalk facility at Tokarkhada are available. The fees for participating in **e-auction is Rs.1100/- wherein Rs. 100/- (Non-refundable) shall be taken as Registration Fees and Rs. 1000/- (Refundable) as Earnest Money Deposit (EMD) for installation of hoardings** through online payment, which shall be submitted during registration for bidding.
11. The successful bidder must deposit **amount i.e. Rs. 75,000/- in case of leasing property (Refundable) as Security Deposit** through F.D. (Fixed Deposit) in favour of Planning and Development Authority, Silvassa and submit at the department of DNHPDA Silvassa Physically within 15 days of intimation of allotment to him otherwise his allotment will be stand cancelled and the same shop shall go to next highest bidder.
12. The **amount i.e. Rs. 75,000/- in case of leasing property as Security Deposit** will be permanently deposited in account of Planning and Development Authority if any damage to the property of Skywalk way, Tokarkhada or non-payment of rent.
13. The rent deed/agreement shall be executed only after the payment of security deposit within stipulated period.
14. The allotment of leasing property to the eligible and successful bidder shall be given by the Member Secretary on full payment of amount of security deposit to the DNHPDA and on execution of agreement/rent deed on proper stamp paper costing **Rs. 100/- (Rs. Hundred only)** in prescribed format. The cost of stamp paper and other incidental charges shall have to be borne by the successful bidder/allottee.
15. The Bidder shall not utilize any additional common space other than the allotted area of Hoardings. The encroachment in Walk way area, service passage, staircase area and other open space shall not be allowed.
16. The Billboards / hoardings will be restricted under the following conditions:
 1. Any billboard / hoarding which may obstruct the vision required for safe traffic movement.
 2. Any billboard / hoarding which in the opinion of the Competent Authority is likely to be confused with authorized traffic signs or signals.

3. Any billboard / hoarding contains the word "Stop", "Look", "Danger" or other similar words that might mislead or confuse the travellers.
 4. Any billboard / hoarding that is attached to or printed on a rock or other natural objects.
 5. Any billboard / hoarding that is prohibited or restricted for the purpose of public appearance under local or state or national law.
 6. Any billboard / hoarding with overhang over public property which obstructs access or egress from any building.
 7. Any billboard / hoarding containing unfair, vulgar matter or advertisement that is considered objectionable in Competent Authority's opinion shall not be permitted. Advertisements that are prohibited by the Government shall not be permitted.
 8. Billboard / hoarding, its structure or lighting that is projecting outside the boundary of the building unit.
- 17.** The Member Secretary, Planning and Development Authority, shall have the right to alter any terms and conditions in future.
- 18.** The Bidder shall not carry out any illegal activities, anti-social activities, anti-national activities etc. in the premises.
- 19.** The bidder shall have to pay his annual rent of hoardings to DNHPDA within 20 days of issuing of allotment/work order and shall have to do so before the beginning of every year.
- 20.** The Bidders shall pay the full amount of **minimum 1(One) Year rent including with service charge/tax/(GST) for leasing property of (01 Year)** 15 days in advance prior to the initiation of the next Year i.e. applicable rent of the said Year, and in case of default/lapses being made in payment on the due date, the Tenant shall be liable to **pay delay charges of Rs. 10,000/- per month** for the period the rent stands unpaid from the due date provided that if the default continues for a period of 2 Months or more, the Member Secretary, Planning and Development Authority, shall also be entitled to evict the tenant lawfully from the premises by terminating his tenancy.

- 21.** In the event of any dispute or question arising as to the interpretation of any condition, words etc. appearing, herewith it shall be referred to the Member Secretary, DNHPDA and his decision there on shall be final and binding to both the parties and no claim of any kind of such interpretation will be entertained. However, the appellant authority will be the Collector/Chairman, DNHPDA, Dadra and Nagar Haveli, Silvassa. By participating in this tender, the applicant is agreeing to the fact that the dispute shall be sent to an arbitrator appointed by Authority and the decision of Arbitrator shall be final. The Civil Court shall have no objection for the same.
- 22.** At any time, if Authority requires premises, in interest of general public or for providing better services to the citizens, the premises shall be given prior notice of three months period for vacating the premises and on expiry of such notice period the allottee/tenants shall without any further notice from the DNHPDA vacate the premises and handover the peaceful possession of the said premises to DNHPDA in the same good condition as he/she received it from the Authority, normal wear & tear being excepted, however, in such cases, the Authority shall take all actions for rehabilitation of the affected tenants by allotting the premises available at other places within the area of Authority with new terms and conditions and in case if rehabilitation is not possible, the security deposit will be released to the allottee/tenants immediately after taking possession of the premises without interest.

sd/-
Member Secretary
DNHPDA, Silvassa







On Mid Semi circle Purlin

